The Chennai City Tenants Protection Rules, 1970

TAMILNADU
India

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Rule THE-CHENNAI-CITY-TENANTS-PROTECTION-RULES-1970 of 1970

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The Chennai City Tenants Protection Rules, 1970Published vide Notification G.O. Ms. No. 2368, Revenue, dated the 25th July 1970, dated 21.10.1970SRO No. A-976 of 1970. - In exercise of the powers conferred by section 14 of the [Chennai] [Substituted for 'Madras' by the Tamil Nadu Act 28 of 1996.] City Tenants' Protection Act, 1921 (Tamil Nadu Act III of 1922), as subsequently amended, the Governor of Tamil Nadu hereby makes the following rules:-

1.

These rules may be called the [Chennai] [Substituted for 'Madras' by the Tamil Nadu Act 28 of 1996.] City Tenants' Protection Rules, 1970.

2.

In these rules,-(i)"Act" means the Chennai City Tenants' Protection Act, 1921 (Tamil Nadu Act III of 1922);(ii)"Fee" means the fee prescribed under these rules;(iii)"Section" means a section of the Act.

3.

Every application or petition made under sections 6, 7, 7-A or 9 shall be accompanied by a fee of rupees five if made to the Presidency Small Cause Courts or the District Munsif's Court and a fee of rupees ten if made to a Sub-Court, District Court or the City Civil Court.

4.

For every appeal to the High Court under section 9-A, a Court-fee of Rs. 10 shall be payable and in respect of the appeals to the other Courts a fee of Rs. 5 only shall be payable.

5.

In estimating the cost of a building and, or improvement under section 5, the Court shall have due regard to the current schedule of rates of materials and cost of construction followed by the Public Works Department of the Tamil Nadu Government.

6.

The allowance for depreciation of buildings under section 5 shall be calculated at the rates specified in the Schedule to these rules.The Schedule[See Rule 6]Standard Rates of Depreciation

	Type of buildings	Rate of depreciation per annum
(1)	Buildings built in lime or cement mortar and inwhich teak has been used throughout.	1 per cent
(2)	Buildings built partly of brick-in-lime orcement mortar and partly of brick-in-mud and in which teak hasbeen used.	1 per cent
(3)	Buildings built in brick-in-mud and in whichcountry wood has been used.	2 per cent
(4)	Buildings which are inferior to those of type 3with brick-in-mud unplastered walls and mud floors and in whichcheap country wood has been used.	4 per cent

Notes. - (1) The depreciation shall be calculated for each year on the net value arrived at after deducting the amount of depreciation for the previous year.(2)The amount of depreciation shall, in no case, be less than 10 per cent of the estimated present cost of the building.Illustrations:-(a)For a building of type 1 aged only 2 years-the depreciation shall be 10 per cent, and not about 2 per cent, as calculated under the formula given in Note (3) below.(b)For a building of type 1,15 years old, it is 13.99 per cent, as derived from the formula given under Note (3) below.(3)The actual depreciation of a building aged in years is calculated by using the formula:-P = A(100-r)n/100When A - present capital cost of the building,r = % rate of depreciation per annum,n = age of the building (i.e. the number of years),p = the final depreciated value of the building.The amount of depreciation will be equal to ('A' 'P') subject to a minimum of 10 per cent of 'A'.